IN THE UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF MISSOURI WESTERN DIVISION

UNITED STATES OF AMERICA,	)	
	)	
Plaintiff,	)	
	)	
v.	)	
	)	
ISLAMIC AMERICAN RELIEF AGENCY (IARA),	)	No. 07-00087-01/07-CR-W-NKL
MUBARAK HAMED,	)	
KHALID AL-SUDANEE,	)	
ABDEL AZIM EL-SIDDIG	)	
and	)	
MARK DELI SILJANDER,	)	
	)	
Defendants.	)	

GOVERNMENT'S LIST OF WITNESSES

The United States of America, by and through Beth Phillips, the United States Attorney for the Western District of Missouri, and undersigned counsel, provides this list of witnesses who may be called during the Government's case-in-chief:

1. Jeffrey Abbott (probable witness)
   Special Agent, Internal Revenue Service - Criminal Investigation (IRS-CI)
   Jefferson City, Missouri
   Description: Testimony regarding collection of records, compilation of summary exhibits, money transfer schedules, and summary charts.

2. Hanan Ahmed (possible witness)
   Chicago, Illinois
   Description: Wife of Defendant Abdel Azim El-Siddig. Testimony regarding signing checks for IARA.

3. Abubaker Ahmad Yasin Al-Shingieti (possible witness)
   Washington, D.C.
   Description: Testimony regarding IARA Board of Directors, and Defendant Siljander.

4. Andrew Alvey (probable witness)
Special Agent, Federal Bureau of Investigation (FBI)
Kansas City, Missouri
Description: Testimony regarding the execution of search warrants at Defendant Hamed's home.

5. Dorothy Awosika (probable witness)
Auditor, United States Agency for International Development (USAID)
Washington D.C.
Description: Testimony regarding USAID cooperative agreements with IARA, and IARA's financial and accounting system related to the USAID programs.

6. Ali M. Bagegni (probable witness)
Member of IARA Board of Directors
c/o John C. Aisenbrey, Esq.
Kansas City, Missouri
Description: Pled guilty pursuant to plea agreement. See plea agreement (DE 397) for factual basis.

7. Custodian of Records
Bank of America, N.A.
Columbia, Missouri
Description: Account information.

8. Custodian of Records
BB&T Bank
Winston-Salem, North Carolina
Description: Account information.

9. Bonnie Lawler (records custodian)
Boone County National Bank
Columbia, Missouri
Description: Account information.

10. Custodian of Records (Kathy Nicholas)
Boone County National Bank
Columbia, Missouri
Description: Account information.

11. Cathy Bowes (possible witness)
United States Agency for International Development (USAID)
Baghdad, Iraq
Description: Testimony regarding Child Survival Program, and cooperative agreement with Defendant IARA.

12. Paula L. Briscoe (possible witness)
Action Officer, Office of Director of National Intelligence (ODNI)
McLean, Virginia
Description: Testimony regarding intelligence community document and media exploitation policies.

13. Sonya Brown (probable witness)
Former Deputy Foreperson, Special Grand Jury
Kansas City, Missouri
Description: Testimony regarding grand jury's investigation of theft of USAID funds, and review of information provided by and pertaining to Defendant Siljander.

14. Joan Casey, Certified Public Accountant (CPA) (probable witness)
Columbia, Missouri
Description: Testimony regarding work performed for IARA and Defendant Hamed.

15. Custodian of Records (Dan Riner)
CNN
Atlanta, Georgia
Description: Testimony regarding interview with IARA representative Ed Moad (name of interviewer left off).

16. Della Dash (possible witness)
Office of Foreign Assets Control (OFAC) (retired)
San Francisco, California
Description: Testimony regarding education provided to IARA in Mali.

17. John Drake (possible witness)
Former Staff Attorney, U.S. Senate Finance Committee
Washington, D.C.
Description: U.S. Senate Finance Committee regarding investigation of charities suspected of supporting terrorism.

18. James Dubois (possible witness)
USAID
Washington, D.C.
Description: Testimony regarding USAID-funded projects in Mali and interaction with IARA.

19. Ahmad Elayoubi (possible witness)
Atlanta, Georgia
Description: Testimony regarding contact with IARA regarding charitable donation.

20. Fatten ElKomy (probable witness)
Former IARA employee
Columbia, Missouri
Description: Testimony regarding work at IARA.

21. Mohamed ElKomy (probable witness)
Former IARA bookkeeper
Columbia, Missouri
Description: Testimony regarding work at IARA and procedures for bookkeeping, wiring, and the signing of checks.

22. Elton Ellison (probable witness)
Acting Director, Enforcement Division
Office of Foreign Asset Control
Washington, D.C.
Description: Testimony regarding sanctions and licensing generally, and communications with IARA and Defendant Hamed regarding sanctions.

23. Zuhair El-Shwedhi (probable witness)
Former IARA employee and fundraiser
Dayton, Ohio
Description: Testimony regarding work at IARA, fund-raising for IARA, and dealings with Khalid Al-Sudanee and the provision of materials and money through Jordan into Iraq during the time the Iraq (and UN) sanctions were in place. Pled guilty to federal tax offense in Ohio related to his providing products and aid in violation of Iraqi sanctions.

24. Mercedes Eugenia (possible witness)
USAID
Washington, D.C.
Description: Testimony regarding USAID framework and termination of second cooperative agreement.

25. Eric Fellman or Custodian of Records
International Foundation
Washington, D.C.
Description: Introduction of International Foundation records and testimony regarding the International Foundation.

26. Joyce Frame (possible witness)
Annandale, Virginia
Description: Agreement Officer for USAID (retired). Testimony regarding first CSP cooperative agreement.

27. Dawn Goldberg (probable witness)
Internal Revenue Service (IRS), TEGE, Exempt Organizations
Description: Testimony regarding procedures for tax-exempt organizations, information return filing requirements, and IRS forms filed by and on behalf of IARA.

28. Robert Hanrahan (possible witness) or custodian of records (possibly Mrs. Hanrahan)
Chicago, Illinois
Description: Testimony regarding being hired to advocate for IARA removal from Senate Finance Committee list of charities suspected to support terrorism.

29. David Harmon (possible witness)
Chief Enforcement Officer, OFAC
Washington, D.C.
Description: Testimony regarding correspondence with IARA and Iraq and Sudan sanctions.

30. Daniel J. Hill (possible witness)
St. Augustine, Florida
Description: Testimony regarding contact with IARA regarding charitable donation.

31. John T. Houk, Jr. (possible witness)
National Heritage Foundation
Falls Church, Virginia
Description: Testimony regarding National Heritage Foundation and Defendant Siljander.

32. John T. Houk, III (possible witness)
National Heritage Foundation
Falls Church, Virginia
Description: Testimony regarding National Heritage Foundation and Defendant Siljander.

33. Todd Hynson (probable witness)
Special Agent, FBI
Kansas City, Missouri
Description: Testimony regarding investigation of IARA, seizure of evidence from IARA storage locker, and review of evidence.

34. Custodian of Records (Leah Swicegood)
Internal Revenue Service (IRS), Kansas City Service Center
Kansas City, Missouri
Description: Introduction of forms filed with and records of the IRS.

35. Beverly Jackson (probable witness)
Auditor, United States Agency for International Development (USAID)
Washington D.C.
Description: Testimony regarding USAID cooperative agreements with IARA, and IARA's financial and accounting system related to the USAID programs.

36. Custodian of Records
James Monroe Bank
Arlington, Virginia
Description: Account information.

37. Rodney Johnson (possible witness)
Arlington, Virginia
Description: USAID (retired). Testimony regarding IARA suspension.

38. Abdelmajid Jondi (possible witness)
Flint, Michigan
Description: Testimony regarding contact with IARA regarding charitable donation.

39. Katherine Jones (possible witness)
La Jolla, California
Description: USAID (retired). Testimony regarding education provided to IARA, and the Technical Evaluation Committee's criteria and selection, and the Committee's recommendation regarding smaller award for capacity building.

40. Gary Juste (possible witness)
USAID
Washington, D.C.
Description: Agreement Officer. Testimony regarding CEWIGAP.

41. Ibrahim Khaleel (probable witness)
Former IARA employee
Columbia, Missouri
Description: Testimony regarding work at IARA.

42. Kevin King (possible witness)
Mennonite Central Committee
c/o: John Moustakas, Esq., Washington, D.C.
Description: Testimony regarding correspondence with IARA and provision of copy of OFAC license for Iraq to IARA.

43. Loretta King (possible witness)
Washington, D.C.
Description: USAID (retired). Agreement Officer for second cooperative agreement.

44. Evan F. Kohlmann, J.D. (expert witness)
NEFA Foundation
New York, New York
Description: Expert testimony regarding identity of IARA and ISRA.

45. Lorraine Lawler (possible witness)
OFAC
Washington, D.C.
Description: Testimony regarding IEEPA and OFAC licensing.

46. Nand Kumar Lakhavani (probable witness)
Boone, North Carolina
Description: Former USAID employee. Testimony regarding Siljander's request for information involving IARA.

47. John David Mann (possible witness)
Hadley, Massachusetts
Description: Testimony regarding work as ghost writer for Defendant Siljander's book.

48. Michael Maudlin (possible witness)
Editorial Director, HarperOne
c/o David Zornow, Esq., New York, NY
Description: Testimony relating to publication of Defendant Siljander's book.

49. Margret McBride
The McBride Literary Agency
San Francisco, California
Description: Testimony relating to writing and publication of Siljander's book.

50. Bob McBrien (possible witness)
OFAC
Washington, D.C.
Description: Testimony regarding SDGT designation process.

51. Lisa McClennon (probable witness)
Special Agent, USAID
Washington, D.C.
Description: Testimony regarding investigation, collection of USAID documents, and interview of Defendant Siljander.

52. Arthur Daniel McGlynn (possible witness)
OFAC
Washington, D.C.
Description: Testimony regarding work at OFAC and OFAC correspondence with IARA.

53. Custodian of Records
Merrill Lynch FAC
Pennington, New Jersey
Description: Account records.

54. Ed "Omar" Moad (possible witness)
Former IARA employee
Believed to be in Qatar (exact location unknown)
Description: Testimony regarding work at IARA and CNN interview regarding former IARA employee Ziyad Khaleel.

55. Sherri Maiorana (probable witness)
Special Agent, FBI
Kansas City, Missouri
Description: Testimony regarding compilation of financial materials relating to IARA and USAID, payments to Defendant Siljander, and statements made by Defendant Siljander.

56. Elizabeth Miller (possible witness)
Former IARA employee
Columbia, Missouri
Description: Testimony regarding work at IARA and correspondence with Khalid Al-Sudanee.

57. Hodda Muraywid (possible witness)
Former IARA employee
Columbia, Missouri
Description: Testimony regarding work at IARA, Child Sponsorship Program, and dealings with Khalid Al-Sudanee.

58. Ahmad Mustafa (probable witness)
Former IARA fundraiser
c/o Troy K. Stabenow, Esq.
Jefferson City, Missouri
Description: Pled guilty pursuant to plea agreement. See plea agreement (DE 352) for factual basis.

59. Custodian of Records
National Heritage Foundation
Falls Church, Virginia
Description: Testimony regarding Defendant Siljander's records and billing with NHF.

60. Custodian of Records (Scott Woodson, Deputy Chief of Operations)
National Media Exploitation Center
Defense Intelligence Agency
Washington, D.C.
Description: Custody and control of seized Iraqi Intelligence Service documents.

61. Charles F. Nettleship, IV (probable witness)
Lieutenant Colonel, U.S. Army Reserve (DIA contractor)
Washington, D.C.
Description: Testimony regarding the seizure of documents at Baghdad, Iraq, on or about November 29, 2004.

62. Richard Newcomb (possible witness)
Former Executive Director, OFAC
Washington, D.C.
Description: Testimony regarding correspondence with IARA regarding licensing for Iraq and Sudan.

63. Susan Nitsch (probable witness)
Special Agent, FBI
Kansas City, Missouri
Description: Testimony regarding investigation, Ziyad Khaleel's employment at IARA, and wire intercepts.

64. Barry Sabin (possible witness)
Former Chief, Counterterrorism Section, U.S. Department of Justice
Washington, D.C.
Description: Testimony regarding conversation with Defendant Siljander.

65. Assma Sawani (possible witness)
Former IARA employee
Columbia, Missouri
Description: Testimony regarding work at IARA.

66. Paul R. Schlup (probable witness)
Special Agent (retired), IRS-CI
Jefferson City, Missouri
Description: Testimony regarding IRS investigation of IARA, statements by Defendant Hamed.

67. Daniel Serna, CPA (possible witness)
Arlington, Texas
Description: Testimony regarding work done for IARA.

68. James Seward (possible witness)
former compliance officer, OFAC
Washington, D.C.
Description: Testimony regarding IEEPA and OFAC licensing, and interactions with IARA regarding Sudan.

69. Suhail Siddiq, CPA (possible witness)
Believed to be in Pakistan (location unknown)
Description: Testimony regarding audits and accounting work done for IARA, and IRS forms prepared for IARA.

70. D. Robert Smego (expert witness)
Document Analyst
Washington, D.C.
Description: Expert testimony concerning the authenticity of the Iraqi Intelligence Service (IIS) documents and their status as part of the business records of the IIS. [All other areas of proposed testimony for this witness are precluded by the Court's rulings on motions *in limine*.]

71. Marcus Stevenson (possible witness)
USAID
Crofton, Maryland
Description: Testimony regarding termination appeals and debarment.

72. Ismail Tahir, CPA (probable witness)
c/o James Runzheimer, Esq.
Arlington, Texas
Description: Testimony regarding work done for IARA.

73. John Tucker (probable witness)
Special Agent, Federal Bureau of Investigation
Kansas City, Missouri
Description: Testimony regarding execution of search warrant at IARA office.

74. Annette Tuebner (possible witness)
USAID
Washington, D.C.
Description: Testimony regarding CEWIGAP.

75. Custodian of Records
U.S. Senate Finance Committee
Washington, D.C.
Description: Introduction of press release regarding investigation of charities suspected of supporting terrorism.

76. Gary Winter (possible witness)
USAID
Washington, D.C.
Description: Testimony regarding support of terminations.

77. Dennis Wood (possible witness)
OFAC
Washington, DC
Description: Testimony regarding correspondence with IARA and applications for OFAC licenses.

78. Ayat Zmaili (possible witness)
Former IARA employee
Columbia, Missouri
Description: Testimony regarding work at IARA

Respectfully submitted,

BETH PHILLIPS
United States Attorney

By: */s/ Anthony P. Gonzalez*
ANTHONY P. GONZALEZ
Assistant United States Attorney

/s/ Steven M. Mohlhenrich
STEVEN M. MOHLHENRICH
Assistant United States Attorney

/s/ Paul G. Casey
PAUL G. CASEY
Trial Attorney, Counterterrorism Section
National Security Division, U.S. Dept. of Justice

CERTIFICATE OF SERVICE

The undersigned hereby certifies that a copy of the foregoing was delivered on June 23, 2010, to the CM-ECF system of the United States District Court for the Western District of Missouri for electronic delivery to all counsel of record.

/s/ Steven M. Mohlhenrich
STEVEN M. MOHLHENRICH
Assistant United States Attorney